

Hyderabad and Secunderabad (Public Place of halt/Place of Public Entertainment/Amusement)- Rules, 2005

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State of Andhra Pradesh - Act

Hyderabad and Secunderabad (Public Place of halt/Place of Public Entertainment/Amusement)- Rules, 2005

ANDHRA PRADESH

India

Hyderabad and Secunderabad (Public Place of halt/Place of Public Entertainment/Amusement)- Rules, 2005

Rule

HYDERABAD-AND-SECUNDERABAD-PUBLIC-PLACE-OF-HALT-PLACE-OF-PUBLIC-ENTERTAINMENT-AMUSEMENT-RULES-2005 of 2005

Published on 2 July 2005

Commenced on 2 July 2005

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Hyderabad and Secunderabad (Public Place of halt/Place of Public Entertainment/Amusement)- Rules, 2005

Published vide Notification No. G.O.Ms.No. 129, Home (Leg. II), dated 2.7.2005

Last Updated 12th September, 2019

G.O.Ms.No. 129. - In exercise of the powers conferred by clause (f) of sub-section (1) and sub-section (2) of Section 21 of the Hyderabad City Police Act, 1348-F (Act No. IX of 1348-F) the Commissioner of Police with the previous sanction of the Government of Andhra Pradesh hereby notify the following rules relating to establishments i.e. Hotels/Tea stalls Restaurants/Lodges/Bar and Restaurants/other food joints and public place of halts etc. in twin cities of Hyderabad and

Secunderabad, with effect from the date of publication of this Notification in the Extraordinary issue of A.P. Gazette.

1.

Short title and Extent.

- (i) These rules may be called The Hyderabad and Secunderabad (Public Place of halt/Place of Public Entertainment/Amusement)- Rules, 2005.

(ii)

It shall extent to the twin cities of Hyderabad and Secunderabad.

2.

Definition.

- In these rules unless the context otherwise requires.

(a)

'Act' means 'Hyderabad City Police Act 1348 Fasli'

(b)

'Government' means The Government of Andhra Pradesh'

(c)

'Licensing Authority' means the Commissioner of Police, Hyderabad City.

(d)

'Public Place of Halt' means the place of half of public where liquor, toddy and other intoxicants, defined in the Excise Act are sold or supplied and includes every public place of halting.

3.

Licence for running a Public Place of halt/Place of Entertainment/ Amusement.

(1)

No person, shall be competent to open or establish any public place of halting in the twin cities of Hyderabad and Secunderabad without obtaining a licence from the Commissioner of Police, Hyderabad City and without fulfilling the following requirements in the interest of not causing inconvenience, delay, danger or damage to the residents or the persons passing in the vicinity of such place of halt:

(1)

No-Objection Certificate from Fire Service Department,

(2)

Trade Licence from Municipal Corporation of Hyderabad with regard to use of site for business purpose,

(3)

No-Objection Certificate from Chief Medical Officer of Health, Municipal Corporation of Hyderabad.

(4)

Title/Blue print copy of the site approved by the Town Planner,

(5)

Title deed/lease deed or rental deed showing the purpose for which the site is leased and

(6)

Excise License in case of Bar and Restaurants.

(2)

Parking place to be provided in accordance with the regulations under F.A.R (Floor Area Ratio Regulations and Standards of building requirements in Andhra Pradesh) under Parking Head as laid down in G.O.Ms.No. 422 & 423, Municipal Administration, dated 31-07-1998 of Municipal Administration and Urban Development (MI) Department and further orders issued from time to time by the Government.

4.

Appeal.

- An appeal against the orders passed by the licencing authority in refusing the licence, shall lie with the Government, whose orders thereon shall be final.

5.

Application for Licence.

- Every person, or an Organization or a Society whether registered or un-registered shall apply for Licence in such Form as prescribed from time to time by the Licencing Authority.

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